



POLICE DEPARTMENT

September 4, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202003791 (Incident Date: May 30, 2020) regarding Police Officer Sokol Karaduzovic, Tax No. 965766 (DADS No. 2022-26364)

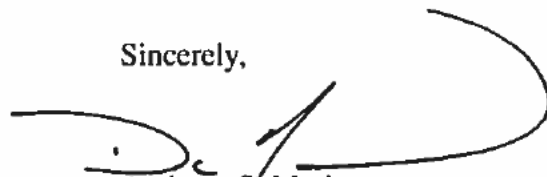
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202003791, pertaining to Police Officer Sokol Karaduzovic. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Karaduzovic would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Officer Karaduzovic for three counts of New York Penal Law § 110/120.00, Attempted Assault in the Third Degree. Body-worn camera footage of the incident captured the entirety of the officer's actions underlying the allegations. After reviewing the evidence, the Police Commissioner finds that Officer Karaduzovic did not use a chokehold and that his use of force was within guidelines. More importantly, the Police Commissioner finds that Officer Karaduzovic's actions do not rise to the level of criminality.

Officer Karaduzovic has no formal disciplinary history and no substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Sokol Karaduzovic
Disciplinary Case No.: 2022-26364

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Officer Karaduzovic would be detrimental to the Police Department’s Disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action for the allegations of Attempted Assault in the Third Degree.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Karaduzovic and permit CCRB to prosecute this case. The Charges and Specifications in this case were filed using the crime exception and comport with the statutory requirements for Attempted Assault in the Third Degree. The misconduct in this case is captured entirely on body-worn camera footage and it is undeniable that Officer Karaduzovic used excessive force and placed the complainant in a chokehold. We disagree with your finding that “Officer Karaduzovic’s actions do not rise to the level of criminality” and ask that you allow us to pursue the prosecution of these Charges and Specifications. By not taking disciplinary action, Police Officer Karaduzovic is not being held accountable for this substantiated misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing no disciplinary action for the misconduct in this case. CCRB requests that

you allow our agency to pursue the prosecution of these Charges and Specifications against Officer Karaduzovic.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

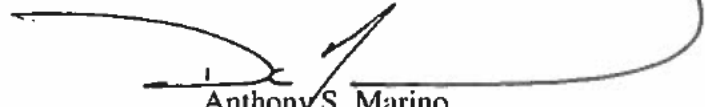
Re: CCRB Case No. 202003791 (Incident Date: May 30, 2020) regarding Police Officer Sokol Karaduzovic, Tax No. 965766 (DADS No. 2022-26364)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Sokol Karaduzovic. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Karaduzovic for the reasons expressed in my September 4, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office